PREPARED BY AND RETURN TO: Akerman, Senterfitt, Eidson & Moffitt
Mark K. Straley, Esq.
P.O. Box 3273
Tampa, FL 33601-3273

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DECLARATION OF CONSENT TO JURISDICTION OF COMMUNITY DEVELOPMENT DISTRICT AND TO IMPOSITION OF SPECIAL ASSESSMENTS

Trout Creek Properties, Inc., a Delaware corporation qualified to do business in Florida (the "Landowner"), and the sole owner of the land described in Exhibit A hereto (other than the property which has been previously deeded to Pasco County) intending that it and its successors in interest shall be legally bound by this Declaration, hereby declares, acknowledges and agrees as follows:

1. Meadow Pointe Community Development District (the "District") is, and has been at all times on and after October 9, 1991, a legally created, duly organized, and validly existing community development district under the provisions of Florida Statutes, Chapter 190 (1991). The members of the Board of Supervisors of the District (the "Supervisors") and officers, as constituted from October 9, 1991 to and including the date of this Declaration, were duly elected to their respective positions in accordance with all requirements of Federal and Florida law including the Constitution of the United States of America and of the State of Florida and had the authority and right to authorize, approve, and undertake all actions of the District approved and undertaken from October 17, 1991 to and including the date of this Declaration.

2. The Landowner, its heirs, successors and assigns hereby confirm and agree that the special assessments imposed by Resolution 91-7 duly adopted by the Board of Supervisors of the District on October 17, 1991, Resolution 91-8 and Resolution 91-9 duly adopted by the Board of Supervisors of the District on October 24, 1991, Resolution 91-10 and Resolution 91-11 duly adopted by the Board of Supervisors of the District on November 19, 1991, Resolution 92-1 duly adopted by the Board of Supervisors of the District on February 13, 1992, and 92-3 duly adopted by the Board of Supervisors of the District on February 19, 1992, amending Resolution 91-10, including, without limiting the generality of the foregoing, required prepayments as established thereunder, are the valid, legal, binding obligations of the Landowner, its heirs, successors and assigns, and the Landowner, its heirs, successors and assigns, in consideration of the improvements for which such assessments have been levied by the District, hereby covenant to pay such assessments, as and when due, but recourse against the Landowner for failure to pay the assessments shall be limited to enforcement of the assessments as provided by law. Landowner acknowledges and agrees that it was present at the meeting of the Board of Supervisors of the District at its meeting on February 19, 1992, that such meeting was a continuation to a date certain of a regularly scheduled and noticed meeting of such Board, and further that it waived and does hereby waive any further notice which could be asserted as being applicable under provisions of Florida law in connection with such amendment.

3. The Landowner, its heirs, successors and assigns, hereby waive the right granted in Chapter 170.09, Florida Statutes (1991),

to prepay the special assessments within thirty (30) days after the improvements are completed without interest, in consideration of the rights granted by the District to prepay the special assessments in full at anytime under the circumstances set forth in the resolution of the District levying the special assessments.

4. The Developer/Landowner hereby consents to pay the special assessments on or before March 1 of each year to the Tax Collector.

THE DECLARATIONS, ACKNOWLEDGEMENTS, AND AGREEMENTS CONTAINED HEREIN SHALL RUN WITH THE LAND DESCRIBED IN EXHIBIT A HERETO AND SHALL BE BINDING ON LANDOWNER AND ON ALL PERSONS (INCLUDING CORPORATIONS, ASSOCIATIONS, TRUSTS, AND OTHER LEGAL ENTITIES) TAKING TITLE TO ALL OR ANY PART OF THE LAND, AND THEIR SUCCESSORS IN INTEREST, WHETHER OR NOT THE LAND IS PLATTED AT SUCH TIME. BY TAKING SUCH TITLE SUCH PERSONS SHALL BE DEEMED TO HAVE CONSENTED AND AGREED TO THE PROVISIONS OF THIS DECLARATION TO THE SAME EXTENT AS IF THEY HAD EXECUTED IT AND BY TAKING SUCH TITLE SUCH PERSONS SHALL BE ESTOPPED FROM CONTESTING, IN COURT OR OTHERWISE, THE VALIDITY, LEGALITY, AND ENFORCEABILITY OF THIS DECLARATION OR OF ANY OF THE ORDINANCES, RESOLUTIONS, AGREEMENTS, DOCUMENTS, AND OTHER MATTERS DEALT WITH HEREIN.

Dated as of February 20, 1991.

TROUT CREEK PROPERTIES, INC., a Delaware corporation

By: Brian P. Burns
Its: President
Brian P. Burns

WITNESSES

Joseph O. Edwards

Cynthia Henderson

(Corporate Seal)

FILED FOR RECORD
CLK CIR CT-PROBATE COUNTY, FL
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STATE OF FLORIDA
COUNTY OF HILLSBOROUGH

The foregoing instrument was acknowledged before me this 20th day of February, 1992, by Brian P. Burns, President of Trout Creek Properties, Inc., a Delaware corporation, on behalf of the corporation. He is personally known to me and did not take an oath.

Valerie A. Herlong
NOTARY PUBLIC
Name: Valerie A. Herlong
My Commission Expires:

Valerie A. Herlong
Notary Public, State of Florida
My Commission Expires Jan. 16, 1993
Bonded Thru Troy Fain - Insurance Inc.

(AFFIX NOTARY SEAL)

O.R. 3002 PAGE 954

EXHIBIT "A"

MEADOW POINTE
COMMUNITY DEVELOPMENT DISTRICT

DESCRIPTION: A Parcel of land lying in Sections 31 and 32, Township 26 South, Range 20 East, Pasco County, Florida, said parcel being more particularly described as follows:

From the Northwest corner of said Section 31, run thence S.89°58'03"E., 101.26 feet, along the North boundary of said Section 31, to a point on the East right-of-way line of County Road No. 581, said also being the POINT OF BEGINNING; thence continue along said North boundary of Section 31, S.89°58'03"E., 1150.04 feet to the Northwest corner of TANGLEWOOD VILLAGE - PHASE 2 - AT WILLIAMSBURG WEST, as shown on the map or plat thereof, recorded in Plat Book 20, Pages 134, 135 and 136 of the Public Records of Pasco County, Florida; thence along the West boundary of said TANGLEWOOD VILLAGE - PHASE 2 - AT WILLIAMSBURG WEST, S.00°30'15"W., 1573.76 feet to the Southwest corner of said TANGLEWOOD VILLAGE - PHASE 2 - AT WILLIAMSBURG WEST, said point also being on the Northerly right-of-way of Williamsburg Drive, as recorded in TANGLEWOOD VILLAGE - PHASE 1 - AT WILLIAMSBURG WEST, according to the map or plat thereof as recorded in Plat Book 20, Pages 98 and 99, Public Records of Pasco County, Florida, as shown on the plat of said TANGLEWOOD VILLAGE - PHASE 1 - AT WILLIAMSBURG WEST; thence continue S.00°30'15"W., 81.57 feet to a point on a curve on the Southerly right-of-way line of said Williamsburg Drive; thence along said Southerly right-of-way line the following seven (7) courses: 1) Northeasterly, 175.03 feet along the arc of a curve to the left having a radius of 1089.64 and a central angle of 09°12'13" (chord bearing N.75°03'46"E., 174.84 feet) to a point of tangency; 2) N.70°27'40"E., 250.00 feet to a point of curvature; 3) Northeasterly, 279.72 feet along the arc of a curve to the right having a radius of 2574.92 feet and a central angle of 06°13'27" (chord bearing N.73°34'24"E., 279.58 feet) to a point of tangency; 4) N.76°41'07"E., 567.21 feet to a point of curvature; 5) Northeasterly, 299.69 feet along the arc of a curve to the left having a radius of 2722.70 feet and a central angle of 06°18'24" (chord bearing N.73°31'55"E., 299.54 feet) to a point of tangency; 6) N.70°22'43"E., 373.13 feet to a point of curvature; 7) Northeasterly, 209.37 feet along the arc of a curve to the right having a radius of 602.66 feet and a central angle of 19°54'20" (chord bearing N.80°19'53"E., 208.32 feet); thence continue along the Southerly and Easterly boundaries of said TANGLEWOOD VILLAGE - PHASE 2 - AT WILLIAMSBURG WEST, the following nine (9) courses: 1) N.00°17'03"E., 74.19 feet to a point on a curve; 2) Southeasterly, 180.76 feet along the arc of a curve to the right having a radius of 597.32 feet and a central angle of 17°20'20" (chord bearing S.78°15'29"E., 180.07 feet) to a point of tangency; 3) S.69°35'19"E., 211.93 feet to a point of curvature; 4) Southeasterly, 97.69 feet along the arc of a curve to the left having a radius of 1440.00 feet and a central angle of 11°54'32" (chord bearing S.75°32'35"E., 97.67 feet) to a point of tangency; 5) S.81°29'51"E., 130.5[illegible] curvature; 6) Southeasterly, 262.05 feet along the arc of a curve to the right having a radius of 280.00 feet and a central angle of 53°37'24" (chord bearing S.54°41'09"E., 252.59 feet); 7) N.62°07'33"E., 425.00 feet; 8) N.01°34'49"W., 547.24 feet; 9) N.19°57'52"W., 585.46 feet to a point on the North boundary of the aforesaid Section 31, also being the Northeast corner of said TANGLEWOOD VILLAGE - PHASE 2 - AT WILLIAMSBURG WEST; thence along said North boundary, S.89°58'03"E., 1106.24 feet to the Northeast corner of said Section 31, also being the Northeast corner of said Section 32, run thence S.89°58'09"E., 2418.34 feet along the North boundary of said Section 32; thence S.00°00'00"W., 1280.11 feet; thence S.23°00'00"E., 4391.16 feet to a point on the South boundary of the aforesaid Section 32; thence along said South boundary, N.89°50'36"W., 4032.03 feet to the Southwest corner of said Section 32, also being the Southeast corner of the aforesaid Section 31; thence N.89°49'37"W., 5246.57 feet along the South boundary of said Section 31 to a point on the aforesaid East right-of-way line of County Road No. 581; thence N.00°30'15"E., 2610.00 feet along said East right-of-way line; thence N.36°32'00"E., 746.87 feet; thence N.55°00'00"W., 167.00 feet; thence N.89°29'45"W., 301.67 feet to a point on the aforesaid East right-of-way line of County Road No. 581; thence along said East right-of-way line N.00°30'15"E., 1978.76 feet to the POINT OF BEGINNING.

Containing 901.612 acres, more or less.

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REFERENCE W TROUT CREEK
RECORDING/INDEXING 13.00
RECORDS MODERNIZATION FEE 2.00
TOTAL: 15.00
CHECK # 2694 45.00
REFUND 30.00
CRANJO DT A AMT PAID: 45.00

O.R. 3002 PAGE 955